

24STCV21733 24STCV21733

County: los-angeles

Division: Civil Law and Motion

Department: 406

Hearing date: 2026-08-10

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MUNIR ZAABRI, et al.,

Plaintiffs,

v.

FOUR SEASONS HEALTHCARE & WELLNESS

CENTER, LP, et al.,

Defendants.

Case No.: 24STCV21733

Hearing Date: August 10, 2026

[TENTATIVE]

order RE:

defendant four seasons healthcare &
wellness center, lp's motion for protective order

BACKGROUND

On August 26, 2024, Plaintiff Muni
Zaabri (by and through his successor-in-interest, Khalil Zaabri); Khalil
Zaabri; Jaser Zaabri; Noura Zaabri; and Rula Zaabri filed this action against
Defendants Four Seasons Healthcare & Wellness Center, LP; Schlomo Rechnitz;
Rockport Administrative Services, LLC; and Boardwalk West Financial Services,

LLC.

The complaint asserts causes of action for (1) elder abuse, (2) negligence, (3) violation of resident's rights, and (4) wrongful death. The action stems from Plaintiff Muni Zaabri's treatment at a skilled nursing facility.

On July 7, 2026, Defendant Four Seasons filed the instant motion for a protective order. Plaintiffs filed an opposition on July 28, 2026. Defendant filed a reply on August 3, 2026.

LEGAL STANDARD

The recipient of a discovery request may move for a protective order. (Code Civ. Proc., §§ 2030.090, 2031.060, 2033.080.) "The court, for good cause shown, may make any order that justice requires to protect any party or other person from unwarranted annoyance, embarrassment, or oppression, or undue burden and expense." (Ibid.) "The issuance and formulation of protective orders are to a large extent discretionary." (Nativi v. Deutsche Bank National Trust Co. (2014) 223 Cal.App.4th 261, 316.) "[T]he burden is on the party seeking the protective order to show good cause for whatever order is sought." (Id. at p. 318.)

DISCUSSION

The motion concerns Plaintiffs' demand for inspection of Plaintiff Muni Zaabri's Electronic Health Records (EHR). The demand requests "complete access and inspection of Plaintiff's Point Click Care and Point of Care (or any other electronic health record system used to maintain records including therapy records) of the subject facility . . . from the date of MUNIR ZAABRI'S first admission . . . to the present for all data, logs, reports, alerts, audit logs, and history logs related to MUNIR ZAABRI'S electronic health record data." (Ekpebe Decl., Ex. 1.)

Specifically, Plaintiffs seek a live inspection of Defendant's PointClickCare EHR system through Zoom, directed by their expert, Michele Gonsman. Plaintiffs contend that this inspection is necessary to ensure that Muni Zaabri's entire medical file is produced, including alterations or deletions. Plaintiffs contend that Defendant has only

produced partial records so far and that Defendant's PMQ was unable to answer questions about the preservation of Muni Zaabri's EHR.

Plaintiffs have not demonstrated good cause for this request. While Plaintiffs may demand an inspection of records or materials, the request goes beyond that. It is highly unusual to have Plaintiffs' expert control Defendant's search for records in real time. This would be unduly burdensome and disproportionate to the needs of the litigation.

Moreover, the PointClickCare system is a centralized database containing sensitive medical information on all patients, and accessing a specific patient's records requires navigation through an interface that displays unrelated sensitive information. (Cosico Decl. ¶¶ 2-3.) Thus, Plaintiffs' proposed inspection risks disclosure of other patients' medical information in violation of HIPAA. Notably, the written demand seeks not just inspection, but "photograph/video recording, saving and copying to external hard drive, screen shot capturing, and/or color printing inspection." (Ekpebe Decl., Ex. 1.) Thus, sensitive information may not only be exposed, but also captured and saved externally.

Plaintiffs have not sufficiently shown that the proposed inspection is necessary to obtain the information they seek. Specifically, "PointClickCare permits the generation and export of audit trail reports for specific residents or specific entries as static documents, showing user identity, date, and time of access or modification." (Cosico Decl. ¶ 5.) Thus, Plaintiffs have a viable alternative to obtaining information on the retention and potential modification of Muni Zaabri's EHR. This is further bolstered by the fact that Ms. Gonsman was able to identify precise entries that she deemed problematic. (See Gonsman Decl. ¶¶ 9-10.) This demonstrates that relevant entries can be isolated and individually produced, obviating the need for a live inspection of the entire EHR system.

CONCLUSION

Defendant's motion for protective order is GRANTED.